

Spotting a Claim at Intake TCPA · FDCPA · Florida-analog

⌚ FIRST · THE 4-YEAR CLOCK

The voicemail/text must be no more than 4 years old — TCPA statute of limitations, measured from the **date received**. Older than 4 yrs → auto-reject. Within a few days of the cutoff → also reject (can't file in time).

⚠ Spot an SOL problem → flag & notify the lead immediately.

1 · CLASSIFY

What kind of message is it?

This decides which screens & which pipeline.

TELEMARKETING

Purpose is to **sell** — now or eventually. A "free webinar" that pitches at the end counts.

→ TCPA track (FTSA if FL)

DEBT COLLECTION

Collecting money owed. Different statutes & pipeline — **but we still take these**.

→ FDCPA + Florida (separate)

INFORMATIONAL

Pure notice — appointment, shipping, account alert. Nothing sold, no debt.

→ No claim. Decline.

2 · SCREEN

Run the four screens — any hit = likely a claim

SCREEN 01

Prerecorded Voice

A voicemail that's **pre-recorded / robotic** — not a live person. One is enough.

1 PRERECORDED VOICEMAIL

ANY CALL

COLLECT: the voicemail audio/recording, caller's number, date & time.

SCREEN 02

Failure to Stop (IDNC)

Consumer said **STOP / unsubscribe / no more**, got contacted again. One confirmation text is OK and doesn't count.

OPT-OUT + 1 MORE MSG · 24H+

MKTG → TCPA

DEBT → FDCPA+FL

COLLECT: screenshots of the opt-out, timestamps & every later message.
DEBT: any channel (call/email) after stop counts.

SCREEN 03

Quiet Hours

Called or texted **before 8 AM or after 9 PM** (local time), at least twice.

2+ CONTACTS · 9PM – 8AM

MKTG → TCPA

DEBT → FL LAW

COLLECT: screenshots / call logs with timestamps showing 2+ contacts in the window.

SCREEN 04

Do-Not-Call Registry

Telemarketing only. Number is on a DNC list. **Verify via API** — never take the client's word.

FED · 2+ / 12 MO

FL · 1 CONTACT

TELEMARKETING ONLY

COLLECT: the messages (Dec + Feb counts). Always check the FL list when consumer/company is in Florida.

DON'T MISS

Confirmation text ≠ violation. Never flag the "you've been opted out" reply.

Debt "stop" = every channel. A later call or email violates, even with no texts.

24-hour buffer is ours, not the law. Wait a day before counting a follow-up.

Debt collection ≠ TCPA. Route it to its own FDCPA / Florida pipeline.